

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
RONALD WRIGHT,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER PAUL
PALMINTERI, BADGE NUMBER UNKNOWN,
POLICE OFFICER TININA ALEXANDER, BADGE
NUMBER UNKNOWN, AND POLICE OFFICER
SHARON FEAGGINS, BADGE NUMBER UNKNOWN,Defendants.
-----X

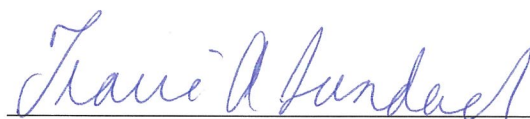
Index No.:

Date Purchased:

Plaintiff designates Kings
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
6514 Route 26
Rome, New York 13442

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 4, 2016TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
RONALD WRIGHT
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER PAUL PALMINTERI,
BADGE NUMBER UNKNOWN,
POLICE OFFICER TININA ALEXANDER,
BADGE NUMBER UNKNOWN,
POLICE OFFICER SHARON FEAGGINS,
BADGE NUMBER UNKNOWN,
83rd Precinct
480 Knickerbocker Avenue
Brooklyn, New York 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RONALD WRIGHT,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER PAUL
PALMINTERI, BADGE NUMBER UNKNOWN,
POLICE OFFICER TININA ALEXANDER, BADGE
NUMBER UNKNOWN, AND POLICE OFFICER
SHARON FEAGGINS, BADGE NUMBER UNKNOWN,

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff RONALD WRIGHT by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned, Defendant POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, acted within the scope of her employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of her office as a police officer for said city and state.

9. That at all times hereinafter mentioned, Defendant POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

10. That at all times hereinafter mentioned, Defendant POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, acted within the scope of her employment for Defendant CITY OF NEW YORK.

11. That at all times hereinafter mentioned, Defendant POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of her office as a police officer for said city and state.

12. On October 15, 2015, at approximately 3:00 p.m., Plaintiff RONALD WRIGHT was lawfully present at or near the intersection of Wilson Avenue and Covert Street, Brooklyn, New York when he was suddenly accosted by members of the New York City Police Department

including, but not limited to, Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN.

13. That on the aforementioned date, time and place, Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, stopped Plaintiff RONALD WRIGHT and asked him for identification. After Plaintiff RONALD WRIGHT complied, Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, stated that they smelled marijuana on his person. In response, Plaintiff RONALD WRIGHT stated that he was not in possession of marijuana or any other illicit drug.

14. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, proceeded to search Plaintiff RONALD WRIGHT without his consent. During the course of the search, Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN asked Plaintiff RONALD WRIGHT if he “had any needles”. Plaintiff RONALD WRIGHT stated that he had no illicit drugs or drug paraphernalia on him. The search of Plaintiff RONALD WRIGHT revealed nothing improper.

15. Thereafter, Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, handcuffed Plaintiff RONALD WRIGHT and placed him under arrest despite Defendants’

knowledge that they lacked reasonable grounds or probable cause to do so.

16. That Plaintiff RONALD WRIGHT was transported to the 83rd Precinct (480 Knickerbocker Avenue, Brooklyn, New York 11237) of the New York City Police Department where he was subjected to an illegal strip-search and his arrest was processed. Plaintiff RONALD WRIGHT was then transported to Central Booking for arraignment.

17. That on October 17, 2015, following arraignment, Plaintiff RONALD WRIGHT was released from custody

18. That on or about January 11, 2016, all criminal charges against Plaintiff RONALD WRIGHT were dismissed.

19. That on or about April 6, 2016, within 90 days of the dismissal of all criminal charges against Plaintiff, but more than 30 days prior to the commencement of this action, Plaintiff RONALD WRIGHT duly presented, served, and filed a Notice of Claim for malicious prosecution, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

20. Upon information and belief, Defendant CITY OF NEW YORK waived its right to a Municipal Hearing pursuant to section 50-h of the General Municipal Law.

21. This action is commenced within one year and ninety days after the cause of action arose.

22. This action falls within one or more of the exceptions set forth in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

23. Plaintiff RONALD WRIGHT repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

24. That at the aforementioned time and place, Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, placed Plaintiff RONALD WRIGHT under arrest, despite Defendants'

knowledge that they lacked probable cause to do so.

25. That Plaintiff RONALD WRIGHT has not committed any offense and Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

26. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, were aware that probable cause did not exist for the arrest and detention of Plaintiff RONALD WRIGHT and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff RONALD WRIGHT and such actions were committed in bad faith.

27. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff RONALD WRIGHT and such actions were committed in bad faith.

28. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff RONALD WRIGHT was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3),

his liberty was restricted for an extended period of time, he was put in fear for her safety, and he was humiliated and subjected to handcuffing and other physical restraints, and strip-searched, without probable cause.

29. As a further result of the above-described acts, Plaintiff RONALD WRIGHT was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

30. Plaintiff RONALD WRIGHT repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

31. That Plaintiff RONALD WRIGHT was falsely imprisoned from October 15, 2015 to October 17, 2015, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

32. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, intended to confine Plaintiff RONALD WRIGHT and Plaintiff RONALD WRIGHT was conscious of the confinement, and Plaintiff RONALD WRIGHT did not consent to the confinement.

33. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff RONALD WRIGHT and damaging Plaintiff RONALD WRIGHT in his reputation and depriving him of his liberty.

34. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff RONALD WRIGHT suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER 42 U.S.C. § 1983**

35. Plaintiff RONALD WRIGHT repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

36. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, misrepresented and falsified evidence before the District Attorney.

37. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, did not make a complete and full statement of facts to the District Attorney.

38. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, withheld exculpatory evidence from the District Attorney.

39. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, were directly and actively involved in the initiation of criminal proceedings against Plaintiff JOSHUA

ARMSTRONG.

40. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, lacked probable cause to initiate criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

41. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, acted with malice in initiating criminal proceedings against Plaintiff JOSHUA ARMSTRONG.

42. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, were directly and actively involved in the continuation of criminal proceedings against Plaintiff RONALD WRIGHT.

43. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, lacked probable cause to continue criminal proceedings against Plaintiff RONALD WRIGHT.

44. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, acted with malice in continuing criminal proceedings Plaintiff RONALD WRIGHT.

45. That Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

46. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, the criminal proceedings were terminated in Plaintiff RONALD WRIGHT's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

47. Plaintiff RONALD WRIGHT repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

48. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

49. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff RONALD WRIGHT .

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff RONALD WRIGHT as alleged herein.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the

constitutional violations suffered by Plaintiff RONALD WRIGHT as alleged herein.

53. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff RONALD WRIGHT's constitutional rights.

54. All of the foregoing acts by Defendants deprived Plaintiff RONALD WRIGHT of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

55. Plaintiff RONALD WRIGHT repeats, reiterates and realleges each and every allegation contained in this complaint.

56. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff RONALD WRIGHT's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

57. As a result of the aforementioned conduct of the individual Defendants, Plaintiff RONALD WRIGHT's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER NEW YORK STATE LAW**

58. Plaintiff RONALD WRIGHT repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

59. On or about October 15, 2015, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants, commenced a criminal proceeding against Plaintiff RONALD WRIGHT, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

60. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff RONALD WRIGHT had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

61. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, were directly and actively involved in the initiation of criminal proceedings against Plaintiff RONALD WRIGHT.

62. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, lacked probable cause to initiate criminal proceedings against Plaintiff RONALD WRIGHT.

63. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, were motivated by actual malice in initiating criminal proceedings against Plaintiff RONALD WRIGHT.

64. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN,

and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, misrepresented and falsified evidence before the District Attorney.

65. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, did not make a complete and full statement of facts to the District Attorney.

66. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, withheld exculpatory evidence from the District Attorney.

67. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, were directly and actively involved in the continuation of criminal proceedings against Plaintiff RONALD WRIGHT.

68. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, lacked probable cause to continue criminal proceedings against Plaintiff RONALD WRIGHT.

69. Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, were motivated by actual malice in continuing criminal proceedings against Plaintiff RONALD WRIGHT.

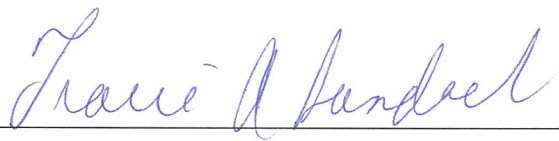
70. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON

FEAGGINS, BADGE NUMBER UNKNOWN, the criminal proceedings were terminated in Plaintiff RONALD WRIGHTS's favor.

71. As a result of the foregoing, Plaintiff RONALD WRIGHT is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00).

WHEREFORE Plaintiff RONALD WRIGHT demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER PAUL PALMINTERI, BADGE NUMBER UNKNOWN, POLICE OFFICER TININA ALEXANDER, BADGE NUMBER UNKNOWN, and POLICE OFFICER SHARON FEAGGINS, BADGE NUMBER UNKNOWN, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 4, 2016

A handwritten signature in blue ink, reading "Tracie A. Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
RONALD WRIGHT
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

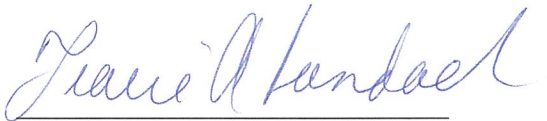
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
November 4, 2016



TRACIE A. SUNDACK